

COMMITTEE ON JUDICIARY
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2862
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 13, chapter 7, Arizona Revised Statutes, is
3 amended by adding section 13-722, to read:

4 13-722. Sentencing enhancement for identity concealment:
5 definition

6 A. A PERSON WHO IS CONVICTED OF ANY OFFENSE OF THIS TITLE WHILE
7 WEARING A MASK WITH THE INTENT TO CONCEAL THE PERSON'S IDENTITY SHALL BE
8 SENTENCED FOR THE NEXT HIGHER CLASS OF OFFENSE THAN THAT FOR WHICH THE
9 PERSON CURRENTLY IS CONVICTED.

10 B. THIS SECTION DOES NOT APPLY TO CLASS 1 AND CLASS 2 FELONIES.

11 C. THE ADDITIONAL SENTENCE IMPOSED PURSUANT TO THIS SECTION IS IN
12 ADDITION TO ANY ENHANCED SENTENCE THAT MAY BE APPLICABLE AND DOES NOT
13 PRECLUDE THE COURT FROM IMPOSING ANY OTHER SENTENCE THAT IS AUTHORIZED BY
14 LAW.

15 D. FOR THE PURPOSES OF THIS SECTION, "MASK":

16 1. MEANS A COVERING THAT OBSCURES OR IS WORN OVER A PERSON'S NOSE
17 OR MOUTH.

18 2. DOES NOT INCLUDE EQUIPMENT OR A FACE COVERING WORN BY A LAW
19 ENFORCEMENT OFFICER ACTING WITHIN THE SCOPE OF THE LAW ENFORCEMENT
20 OFFICER'S EMPLOYMENT."

21 Amend title to conform

And, as so amended, it do pass

QUANG H. NGUYEN
CHAIRMAN

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